

Manoj Kumar Sharma v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 25 January 2019 · WRIT - C No. - 1522 of 2019 · **Writ dismissed; petitioner relegated to CGRF under Clause 7.10.**

HEADNOTE

A subsequent writ against an electricity demand notice is not maintainable where the consumer had already withdrawn an earlier writ against a recovery citation with liberty to approach the Consumer Grievance Redressal Forum under Clause 7.10 of the Electricity Supply Code, 2005. Clauses 7.10 and 6.5 both afford statutory remedies, but the petitioner is bound to the CGRF route granted earlier. Writ dismissed.

FACTUAL SUMMARY

Manoj Kumar Sharma sought quashing of a 7 December 2018 notice requiring deposit of Rs. 39,23,987 as electricity dues. He had earlier challenged a 14 May 2018 demand of Rs. 46,42,368 in Writ-C No. 15366 of 2018, disposed with a direction to decide his objections. Alleging non-decision, he filed a still-pending contempt application. A further writ against the recovery citation (Writ-C No. 21351 of 2018) was dismissed on withdrawal with liberty to approach the CGRF under Clause 7.10. He never approached the Forum and instead filed this writ.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::7.10

cgrf-after-prior-liberty

HOLDING

A consumer who obtained dismissal of an earlier writ against a recovery citation with liberty to approach the Consumer Grievance Redressal Forum under Clause 7.10 of the Electricity Supply Code, 2005 must pursue that Forum and cannot maintain a later writ against a subsequent demand notice. Clauses 7.10 (CGRF) and 6.5 (representation to the Executive Engineer) are both available statutory remedies, but the prior liberty binds the petitioner to the CGRF. ¶ 8-10

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE DEMAND NOTICE DATED 07.12.2018 FOR RS. 39,23,987

Writ dismissed on alternate remedy without examining the bill on merits. ¶ 8-10